

Vijay Kumar Agrawal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 August 2022 · Writ-C No. 21446 of 2022 · Writ-C No. 21446 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 for bill objections.**

HEADNOTE

A consumer disputing the computation of a provisional electricity bill must pursue the statutory objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. Mandamus to correct such a bill will not issue; the writ court relegates the consumer to that remedy and may fix a short time for filing objections and for a reasoned, speaking decision.

FACTUAL SUMMARY

Vijay Kumar Agrawal petitioned the Allahabad High Court for a mandamus directing the Executive Engineer, Electricity Urban Distribution Division (EUDD)-II, Baxipur, Gorakhpur, to correct a provisional electricity bill dated 14 July 2022 for consumption from May 2018 to July 2022. He disputed the computation in that bill. On 11 August 2022 a Division Bench adjourned the matter so that the licensee's counsel could obtain instructions. The petition was then heard by a different Division Bench on 31 August 2022.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

provisional bill correction under clause 6.5

HOLDING

A dispute as to the computation of a provisional electricity bill is to be raised by objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. Mandamus for bill correction will not issue. The consumer is relegated to that statutory remedy, with a direction that if objections are filed within two weeks the Executive Engineer shall pass a reasoned speaking order dealing with all points of objection, preferably within four weeks. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court refused mandamus to correct the provisional bill and disposed of the writ by relegating the petitioner to the clause 6.5 objection before the Executive Engineer. ¶ 1

bill-correction-clause-6.5 The relief sought was correction of the provisional bill dated 14.07.2022; the Court held that such a computation dispute is to be raised under clause 6.5. ¶ 1

clause-6.5-representation-executive-engineer The petitioner was directed to file objections to the provisional bill before the Executive Engineer, EUDD-II, Baxipur, Gorakhpur, who was then obliged to pass a reasoned speaking order on all points of objection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE COMPUTATION IN THE PROVISIONAL BILL DATED 14.07.2022

Left to the Executive Engineer on a clause 6.5 objection. ¶ 1